



POLICE DEPARTMENT

June 23, 2009

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Lorraine Martin
Tax Registry No. 911111
Transit Bureau District 3
Disciplinary Case Nos. 83864/08 & 84907/09

The above-named member of the Department appeared before me on May 15, 2009, charged with the following:

Disciplinary Case No. 83864/08

1. Said Police Officer Lorraine Martin, while assigned to Transit District #3, while off-duty, on or about January 1, 2008, at a location known to this Department, in New York County, did fail and neglect to properly safeguard her off-duty firearm, to wit a 9mm, Glock: Model 28, serial number GEY472.

P.G. 204-08, Page 2, Paragraph 7 – FIREARMS—GENERAL REGULATIONS
UNIFORMS AND EQUIPMENT

2. Said Police Officer, Lorraine Martin, while assigned to Transit District #3, while off-duty, on or about January 1, 2008, at a location known to this Department, in New York County, did store or leave her off-duty firearm in an unattended vehicle.

P.G. 204-08, Page 2, Paragraph 8 – FIREARMS—GENERAL REGULATIONS
UNIFORMS AND EQUIPMENT

Disciplinary Case No. 84907/09

1. Said Police Officer Lorraine Martin, assigned to Transit Bureau #3, in or about and between August 2002 and March 31, 2008, did wrongfully engage in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Officer did maintain insurance for said Officer's vehicle using an address in [REDACTED] when in fact said Officer resided in [REDACTED]

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT—PROHIBITED
CONDUCT—GENERAL REGULATIONS

2. Said Police Officer Lorraine Martin, assigned to Transit District #3, in or about and between August 2002 and February 12, 2008, did wrongfully engage in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Officer did register said Officer's vehicle at an address in [REDACTED] when in fact said Officer resided in [REDACTED] *(As amended)*.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT—PROHIBITED
CONDUCT—GENERAL REGULATIONS

3. Said Police Officer Lorraine Martin, assigned to Transit District #3, in or about and between August 2002 and February 12, 2008, did wrongfully engage in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Officer, having changed her address, did fail and neglect to timely notify the Department of Motor Vehicles of said change. *(As amended)*.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT—PROHIBITED
CONDUCT—GENERAL REGULATIONS

The Department was represented by Pamela Naples, Esq., Department Advocate's Office. The Respondent was represented by Craig Hayes, Esq.

The Respondent, through her counsel, entered a plea of Guilty to the subject charges and testified in mitigation of the penalty. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent, having pleaded Guilty, is found Guilty as charged.

SUMMARY OF EVIDENCE IN MITIGATION

The Respondent is a seventeen-and-a-half year member of the Department. She is presently assigned to Transit District Three.

The Respondent recalled the circumstances surrounding her lost firearm, the first set of charges here. She testified that she left work and went to her mother's house on

[REDACTED] Upon arriving, she removed her firearm which was holstered on her belt on her pants and placed it in her purse. The Respondent then placed the purse on top of a dresser "so no one would be able to get to it." She explained that her children, her nieces, and her nephews were present at her mother's house and she placed the firearm on top of the dresser so that only she could access it.

Eventually, the Respondent left her mother's house and took her firearm with her. She proceeded to a [REDACTED] where her father was staying "to basically get a couple of hours sleep" before returning to work. The Respondent noted that she owns this [REDACTED]. She parked her car in a garage underneath the building, a garage that is secured by a key that controls an automatic gate. Additionally, there is "security" in the building. The Respondent testified that when she parked her car in the garage her firearm was still in her bag. Specifically, the bag was "tucked underneath the passenger's seat. When she got out of her car, the Respondent admitted that she was in a hurry "to get upstairs to try to get as much sleep as I could." Although the Respondent failed to take her firearm with her when she left the car, she claimed that she did so because she was in a rush. The Respondent testified that she went upstairs to the apartment and "dropped everything" to go to sleep.

Generally speaking, the Respondent said that when she is off-duty she keeps her firearm on her person, in a holster affixed to her belt on her hip.

The Respondent testified that she has owned her [REDACTED]. Since that time, her car has never been vandalized. She believed that the building was very safe and as far as she was aware, there were never any vandalism related problems in the building.

The following morning, the Respondent woke up and went downstairs to the garage. She observed broken glass on the ground next to her car and realized that her firearm was not on her person, but in her car. The Respondent testified that her car was "disheveled" and a rock or a brick was inside, ostensibly the object used to break the window. She saw her bag on the floor and the firearm was no longer inside. The Respondent searched her car for the firearm to no avail. She then called police, her command and her delegate. The police responded to the garage and the Respondent identified herself and explained the situation. The firearm has never been recovered.

As to the other charge herein, the Respondent testified that in [REDACTED] she owned two properties. [REDACTED] and the other was on [REDACTED]. Also in [REDACTED] the Respondent purchased a [REDACTED]. She furnished both the Department of Motor Vehicles (DMV) and her insurance carrier with the [REDACTED] address for her car. Although the Respondent said she lived in [REDACTED] at this time, she said she was staying in [REDACTED] due to renovations at her [REDACTED] home. She claimed that she had plans to move to [REDACTED] once the work was completed in [REDACTED]. The Respondent said she returned to [REDACTED] "once the dusty work was done." She never notified the DMV or her insurance carrier that she had moved back to [REDACTED] and she admitted that her residence has been in [REDACTED] from late [REDACTED] until present.

The Respondent testified that she had no intent to defraud her insurance company. She explained that she still owns the [REDACTED] property and her sister and father presently live there. The Respondent testified she only recently found out that she saved a significant amount of money on her car insurance premiums by insuring it in [REDACTED]. She has since corrected the issue by notifying her insurance carrier that her vehicle is

kept in [REDACTED] and, as a result, her premium has increased by about \$2,000 annually. The Respondent never thought she was saving this much money by insuring the car in [REDACTED] as opposed to [REDACTED] and believed the rates at the two locations were similar. She noted that [REDACTED] is on the border of [REDACTED] and opined that the rate would not differ from [REDACTED].

The Respondent said that her insurance carrier never brought suit against her to recover any money. She was never arrested for insurance fraud. The Respondent affirmed that she understands the Department requirement that her address be accurate. Looking back, she said she should have "mindfully have done all the changes [to my address] like I was supposed to."

On cross-examination, the Respondent said that when she utilizes her gun belt, her firearm rests on her right side. She acknowledged that when she removes the gun, she notices difference in weight. However, when asked if she is able to tell when she is carrying a gun and when she is not, the Respondent replied, "Sometimes. After a while you just get so used to it."

The Respondent reiterated that her co-op building has 24-hour security. She had no recollection of seeing any security personnel in the garage on the morning of January 1, 2008, when she parked. The Respondent said that anyone who parks in the garage has access to the garage, but contended that guests are not supposed to have access. When questioned about the possibility of a guest being escorted to the garage by a resident of the building, the Respondent said she "guessed" it was a possibility.

On questioning regarding her address, the Respondent said that she did not immediately change her address with the Department when she moved to [REDACTED] in 2001. She admitted that she lived "off and on" in [REDACTED] for about three months while

her residence in [REDACTED] was renovated. The Respondent acknowledged that she lived in [REDACTED] when she purchased the [REDACTED] but said she was "bouncing back and forth" between [REDACTED] and [REDACTED] because of construction. Her primary residence, however, was in [REDACTED]. Despite her initial plan, the Respondent never moved to [REDACTED].

On examination by the Court, the Respondent said that the parking garage was in [REDACTED].

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222 (1974). The Respondent was appointed to the Department on January 13, 1992. Information from her personnel folder that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Respondent has pleaded guilty to failing to safeguard a firearm and leaving a firearm in an unattended vehicle. In a separate and unrelated case, the Respondent has also pleaded guilty to insuring and registering her vehicle in [REDACTED] when in fact she resided in [REDACTED] and also of failing to notify the Department of Motor Vehicles of an address change. The Assistant Department Advocate has requested a penalty of a forfeiture of 30 vacation days.

While the Respondent testified in a contrite and forthright fashion, this Court did not find her application to be mitigating or persuasive. She explained the loss of her firearm as an aberration, due to rushing from her parking garage to her apartment "to get as much sleep as I could." The fact that the parking garage was equipped with a locked

gate and security personnel is not relevant and does not relieve or diminish the absolute requirement to safeguard a firearm at all times.

As to the vehicular charges, the Respondent explained that she was unaware that she was saving a significant amount of money on her car insurance premiums. While this may certainly be true, the Respondent's utilization of the [REDACTED] address for nearly seven years combined with her testimony that she lived in [REDACTED] and only temporarily stayed in [REDACTED] does not mitigate the three specifications in this case.

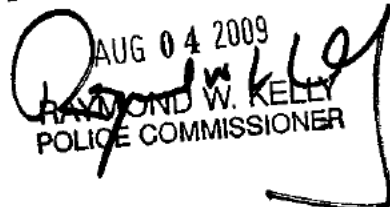
In Disciplinary Case No. 82584/07, a seven year member with no disciplinary record forfeited 20 vacation days for leaving his firearm unattended in his car, resulting in the loss of the gun. In Disciplinary Case No. 84502/08, a seven year member with no disciplinary record forfeited 10 vacation days for continuing to register his automobile in Long Island for almost two years after relocating to Queens.

Based on the foregoing, this Court concurs with the Department's suggested penalty. Accordingly, it is recommended that the Respondent be required to forfeit 30 vacation days.

Respectfully Submitted,


Martin G. Karopkin
Deputy Commissioner-Trials

APPROVED


AUG 04 2009
RAYMOND W. KELLY
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From: Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER LORRAINE MARTIN
TAX REGISTRY NO.: 911111
DISCIPLINARY CASE NOS. 83864/08 & 84907/09

The Respondent has received ratings of “3.0—Competent” on her last three performance evaluations in 2006, 2007 and 2008. In her seventeen-and-a-half years of service, she has [REDACTED]. She is presently designated [REDACTED]. Based on the Respondent’s overall record, she is also on “Level II” Disciplinary Monitoring.

The Respondent has no prior formal disciplinary history.

For your consideration.


Martin G. Karopkin
Deputy Commissioner – Trials